

26STLC00289 26STLC00289

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-25

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Case Number: 26STLC00289 Hearing Date: August 25, 2026 Dept: 26

TENTATIVE

RULING:

Defendant Westside Loan Office's Motion to Deem Requests for Admission, Set One, Admitted and Request for Monetary Sanctions is granted. Plaintiff Kevin Robinson is ordered to pay sanctions of \$660.00 to defense counsel within 20 days' service of this order.

Analysis:

On March 18, 2026, Defendant Westside Loan Office ("Defendant") served Requests for Admission, Set One, on Plaintiff Kevin Robinson ("Plaintiff"). (Motion, Erikson Decl., ¶¶2-5 and Exhs. A-B.) Despite Defendant's effort to meet and confer, Plaintiff had not served responses as of the filing of the instant Motion to Deem Requests for Admission, Set One, Admitted and Request for Monetary Sanctions on July 28, 2026. (Id. at ¶¶6-12 and Exhs. C-D.)

Defendant now moves for an order deeming the Requests for Admission admitted pursuant to Code of Civil Procedure section 2033.280. There is no requirement for a prior meet-and-confer effort before a motion to deem requests for admission can be filed. (Code Civ. Proc., § 2033.280.) Further, the motion can be brought at any time after the responding party fails to serve responses. (Code Civ. Proc., § 2033.280.) Due to Plaintiff's failure to timely serve verified responses and the resulting waiver of objections, Defendant is entitled to an order deeming the Requests for Admission admitted. (Code Civ. Proc., § 2033.280.)

The Court is required to award sanctions under the moving statute. (Code Civ. Proc., § 2033.280, subd. (c).) However, the request for sanctions is excessive given the lack of any opposition and defense counsel's ability to appear remotely for the hearing. Plaintiff is awarded sanctions of \$660.00 based on two hours of attorney time billed at \$300.00 per hour, plus the \$60.00 filing fee. (Motion, Erickson Decl., ¶14.)

Conclusion

Defendant Westside Loan Office's Motion to Deem Requests for Admission, Set One, Admitted and Request for Monetary Sanctions is granted. Plaintiff Kevin Robinson is ordered to pay sanctions of \$660.00 to defense counsel within 20 days' service of this order.

Moving party to give notice.